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FireDistinguishers



Congress 101: House Rules, the House Floor, and the Parties

Effortpost

Introduction

This is part two of a series explaining Congress from the inside. [You can read part one here.](#) I talked about House leadership in my last post, but Congress' job is to legislate and listing out the duties of the folks in charge of that job isn't going to clear too many things up. So let's talk about legislating.

The House Rules Committee

The one leadership position I didn't explain in the last post was the Rules Committee Chair, mostly because that position doesn't make much sense without understanding what the Rules Committee does.

The big job of this Committee is to control the process of considering bills on the House Floor. Before I get into that, I have to say that every Committee in Congress has a particular "jurisdiction." For example: the House Armed Services Committee has the jurisdiction to review legislation in the House involving ongoing military operations, and a whole laundry list of other things.

The Rules Committee's jurisdiction has two categories: original jurisdiction matters and special orders. Original jurisdiction matters are easy to understand: legislation has to go through review by the Rules Committee if it involves changing the standing rules of the House (like how you can't wear a hat on the floor, real thing btw), or if it changes a measure that contains special rules (like the common example of trade promotion authority). These are interesting topics but they aren't the reason this Committee and its Chair are so important, because they aren't the only reason a piece of legislation would end up in front of the Rules Committee.

Special orders, aka "special rules" or just "rules," provide terms and conditions of debate on a measure or matter that's moving through the House. The Rules Committee writes these special rules, and the House votes on them. For the most part these things explain what kind of amendments can be made to a bill and for how long, but honestly a special rule could be fucking anything, man. The Rules Committee can write a self-executing amendment that can rewrite any part of a bill (including EVERY part of a bill), and if a simple majority (50%+1) of the people in the House say "ok, sure, I'll vote Yea," then boom that's real now. The Rules Committee can write a self-executing amendment that just says "This bill passes," and the House says "why not? Yea," and wow that bill just passed the House all of a sudden.

Don't believe me? Listen to them themselves, [last paragraph on this page.](#)

This is what the Committee spends most of its time doing, again usually in the form of green-lighting amendments to bills, and the whole thing is stacked as *hell* in the majority's favor: the thing's made up of 9 members from the majority party, and only 4 from the minority party.

Da Rules

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I'll say it again if you're too lazy to read the old post but this thing is like 700 pages and it has language in it from 200 years ago. Why? It's mostly copy-paste.

Whenever the Leadership is preparing the Rules Package they just take all the rules of the Congress they're currently in, then maybe they change some things that annoyed them or they add a new rule to fill in a gap somewhere and hey, look at that, Rules Package. One thing that upcoming House leadership does spend a lot of time on is setting up a series of tools that suit the legislative agendas they'll have for the next two years, usually in the form of providing avenues for the Rules Committee to write those overpowered special orders from the last section.

With these tools the Rules Committee can make the following types of Special Rules to apply to bills that are brought up on the House Floor: open, modified open, structured and closed. Here's what they all are:

Open Rule If a bill is being governed by an open rule, it means that anybody can add any amendment at any time to it as long as they follow all the reestablished Rules of the House (from that document written at the beginning of a Congress). Basically there's no extra rules that Representatives have to play by. Rare to see this type of legislating in place, you'll see it with super specific hyper-focused bills and with the 12 approps bills but not much else.

Modified Open Rule Basically the same as an open rule except without the "any time" aspect. Amendments have to be pre-printed in the *Congressional Record* before they can be considered. This opens lots of strategies for House Leadership to control a piece of legislation as it moves on the floor. For example, if the minority party adds an amendment that might be super popular but might tank some other part of the bill, House Leadership could pull language from that amendment, have somebody from the majority party propose only the good parts, vote on that new amendment first, just to nullify support for the original amendment.

Structured Rule These are pretty common, basically all amendments to a bill from the floor have to go through the Rules Committee. The Rules Committee then takes all the amendments they approve of and list them out on the published rule for the bill in question. You gotta remember the Rules Committee is pretty stacked in favor of the majority, and only a simple majority needs to vote "Yea" on a rule for it to be adopted. Say it with me kids: the House is partisan and majoritarian.

Closed Rule No floor amendments. If the bill is gonna change, that change has to come from either the Committee review process, or from the Rules Committee.

The Floor

In like every other context, being on the floor isn't something to brag about. Here? This is the big time.

It's the Majority Leader's domain down here, and like I said before Steny Hoyer decides when the House is in session, what the hourly schedule will be, and most importantly what legislation the House is even going to consider on the Floor.

There are five legislative procedures that Steny can use to pick which bills come to the House Floor: unanimous consent, suspension of the rules, special rules (which I just talked about), privileged business, and a discharge petition.

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Suspension of the rules is kind of similar to unanimous consent. House rules only let this kind of thing happen on specific legislative days (Mondays, Tuesdays, and Wednesdays) and that bills considered under a rule suspension have 40 minutes of debate time (20 for each party) with no amendments allowed. If a bill wants to pass like this, they need two-thirds of those present and voting to approve it (290/435).

Special rules procedures are the most common way things get to the House Floor, and we talked about those already.

Privileged business procedure means that the bill in question is special and it needs to be the focus of conversation ASAP. Usually this procedure is in place for the General appropriations bills (and Continuing Resolutions), Budget Resolutions, the adoption of special rules from the Rules Committee, and resolutions involving Member/staff conduct from the Ethics Committee.

The last way a bill could end up down here isn't actually Steny Hoyer's decision at all, anybody can make it happen: filing a discharge petition. These discharge petitions are a way to force legislation out of committee and onto the floor, they're filed with the House Clerk and if 218 Members of the House sign one of these things then the legislation has to come down to the Floor and be debated in accordance to rules set within the petition itself. Usually these things stick around with the Clerk for a while and they slowly gain votes, so when the number gets close to 218 the Majority Leader might bring the legislation to the Floor himself just to make sure the bill is debated under favorable rules and not the rules laid out in the petition.

The Committee of the Whole

Sometimes the House isn't the House at all. Fucking weird right?

The Committee of the Whole House is **not** the House of Representatives. It's a Committee, made up of a select group of * checks notes * every Representative in the House. Ok, but it's chaired by ... the Speaker of the House.

Aside from how dumb this thing is, this thing is actually kind of interesting. There are different rules when the Committee of the Whole is meeting that allow for business being conducted on the floor to actually be meaningful. Debate during this thing is supposed to be a discussion of questions and answers instead of the speech parade we see in the regular House, it has no quorum requirements (meaning there isn't a minimum number of people who have to be present for business to start), and votes are rolled into a series (meaning for related items they go debate-debate-vote-vote instead of debate-vote-debate-vote).

This is how they handle Appropriations, and I honestly don't think they use it for anything else.

Caucuses

Both parties in the House have a party caucus that serves as a party conference: the House Democratic Caucus, and the House Republican Conference. Hate the names yet? These are the other two major congregations of people in the House other than the actual Chamber itself and the Committee of the Whole.

These things are, how do I put this nicely, inefficient but necessary. Both of these organizations adopt a series of rules that define what they are and how their members can behave. You can read the Democrats' rules [here](#), and the Republicans' rules [here](#).

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Shoutout to [u/GilmanB](#) for calling me out, but he was right in the last post, the Committee assignment / Chair assignment process isn't an exercise in despotism, the whole Caucus does vote on it. Why would I lie to you? Well I work on Capitol Hill.

These aren't complicated procedures but they are tedious, they can be changed pretty easily, they switch out every Congress and they don't apply evenly to all Members. That being said, these rules are more commonly read than the Chamber rules by people on the Hill (though most of the time you'll only read the rules that apply to your member). You should check them out.

Conclusion

The House is partisan and majoritarian. Next time we'll learn about Committees.

↑ 80 ↓ 3

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Another interesting thing to point out is that House Republicans have term limits on committee chairmanships and House Democrats don't.

I'm not in favor of term limits overall though; it'll incentivize Congress members even more to use their seats as an "internship" before they head to a corporate job they get using their politics influence.



harmlessdjango • 6y ago

Neat post.



AutoModerator **MOD** • 6y ago

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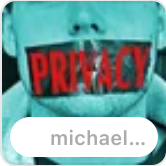
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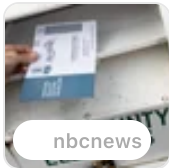
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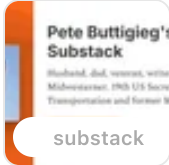
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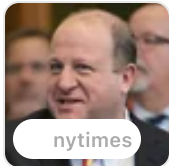
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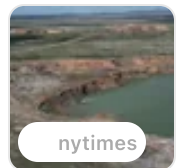
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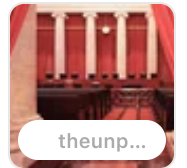
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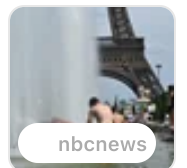
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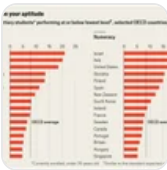


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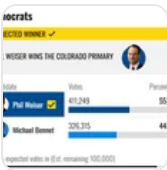


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